SUBSTANTIVE CHIT 01 / ONLINE FLAGSHIP SUBMISSION

FROM FALLOUT RECORDS TO REMEDIATION

A voluntary, consent-based Nuclear Legacy Evidence and Response Mechanism

DELEGATION	COMMITTEE	MODERATED-CAUCUS FOCUS
JAPAN	UN GENERAL ASSEMBLY	PAST TESTING + PRODUCTION LEGACIES

The debate has named the harm; it has not yet named the evidentiary process required to prove, monitor and remediate it. Japan proposes three linked functions: MONITOR, RESPOND and REMEDIATE.

67	23	456	>$500B
US TESTS IN THE MARSHALL ISLANDS	LUCKY DRAGON CREW EXPOSED	TESTS AT THE KAZAKHSTAN SITE	REMAINING US DOE CLEANUP ESTIMATE

I | THE VERIFIED RECORD

The General Assembly has expressly recognized that the consequences of nuclear-weapons use and testing have transcended national borders, contaminated environments and continued to harm health, food security and development.[1]

The United States conducted 67 nuclear tests in the Marshall Islands.[2] On 1 March 1954, Lucky Dragon No. 5 was operating well outside the declared United States danger area when Castle Bravo fallout reached it; all 23 crew members were exposed.[3] A line drawn around a test area did not contain the radioactive material.

At the former Soviet test site in Kazakhstan, 456 tests were conducted, including 116 above ground, across approximately 19,000 square kilometres.[4] IAEA-linked dose-reconstruction records document fallout plumes beyond the test-site boundary.[5] Japan does not claim every part of the site is equally contaminated; the record instead proves the need for site-specific monitoring and risk classification.

Production legacies are equally material. US auditors report that Department of Energy sites remain contaminated from decades of nuclear-weapons production and nuclear-energy research. In May 2025, the Department estimated that remaining cleanup would cost more than half a trillion dollars.[6] A retired warhead does not retire its waste, contaminated facilities, soil or groundwater.

II | THE INSTITUTIONAL GAP

Existing institutions are necessary but not interchangeable. The CTBTO system detects nuclear explosions; it is not a universal remediation authority.[7] IAEA safeguards verify peaceful-use commitments; they do not create an automatic right to inspect every former military site. UNSCEAR evaluates radiation science; it does not administer national cleanup programmes. Records remain fragmented across national archives, while affected States may lack the laboratories or source data needed to challenge a source State’s assessment.

The General Assembly can recommend common reporting, request a Secretary-General repository, convene technical cooperation and encourage assistance. It cannot manufacture compulsory access to classified military sites. Japan’s mechanism is designed accordingly.

THE PROPOSED MECHANISM

III | MONITOR • RESPOND • REMEDIATE

One evidence chain—from historical record to measurable cleanup

01 | MONITOR — VOLUNTARY NUCLEAR LEGACY ENVIRONMENTAL REPORTS

- Test dates, broad locations and atmospheric or underground classification.
- Declassified meteorological, plume and dose-reconstruction records.
- Known or suspected contaminated soil, groundwater, sediment and marine pathways.
- Former production facilities, waste categories, cleanup spending and timelines.
- Measured data, modelled estimates and unresolved uncertainty labelled separately.
- Designs, exact vulnerabilities, operational locations and proliferation-sensitive data protected.

02 | RESPOND — AFFECTED-STATE TECHNICAL REVIEW + NOTIFICATION

- Affected territorial State may request review voluntarily; no site visit without host consent.
- Secretary-General roster draws—within existing mandates—on IAEA, UNSCEAR, CTBTO expertise, regional bodies and qualified laboratories.
- Source State invited to provide original records, methods and uncertainty ranges.
- Plausible cross-border pathway triggers prompt notification and shared sampling methods.
- Notification does not predetermine liability or political attribution.

03 | REMEDIATE — VOLUNTARY ASSISTANCE + MEASURABLE OUTCOMES

- Priority to affected States lacking laboratories and remediation capacity.
- Community participation in selecting monitoring and completion indicators.
- Risk-based remediation; no assumption that every part of a site is equally dangerous.
- Published progress: access restrictions, material secured, environmental trends, health-support coverage and timeline performance.
- Assistance never requires an affected State to surrender its legal position.

EVIDENCE-TO-ACTION CONTROL LOGIC

FAILURE MODE	WHAT GOES WRONG	JAPAN'S CONTROL
FRAGMENTED RECORDS	Incompatible baselines and hidden uncertainty	MONITOR: common categories + uncertainty labels
CONTESTED PATHWAYS	Warnings delayed by political attribution disputes	RESPOND: consent-based review + notification
UNMEASURED CLEANUP	Money announced without proof of environmental results	REMEDIATE: public indicators + community review

NO LAYER SUBSTITUTES FOR ANOTHER.
Evidence without response does not protect neighbours; remediation without measurement cannot prove success.

FROM MECHANISM TO TEXT

IV | DRAFT-READY COMMITTEE RECOMMENDATIONS

Three recommendations the General Assembly can actually adopt

1	Requests the Secretary-General, in consultation with relevant organizations acting within their mandates, to develop a non-binding Nuclear Legacy Environmental Reporting Template and public repository;
2	Invites affected States, by consent, to request independent technical review and encourages source States to provide declassified test, plume, dose and production records relevant to environmental assessment;
3	Encourages voluntary technical and financial assistance for monitoring, victim support and remediation, with community participation, transparent expenditure and periodic outcome reporting.

V | IMPLEMENTATION + RESPONSIBILITY MAP

SECRETARY-GENERAL / UNODA	Consult on the template; maintain the repository; compile a technical roster; summarize participation without grading political positions.
AFFECTED TERRITORIAL STATE	Controls consent for site access; requests review; nominates community representatives; approves publication of review findings.
SOURCE STATE	Supplies declassified records, methodology, uncertainty ranges and relevant technical experts.
TECHNICAL INSTITUTIONS	Contribute only within existing mandates; distinguish measurement, modelling and unresolved uncertainty.
DONORS + COMMUNITIES	Provide voluntary finance, laboratories, training and local knowledge without controlling scientific conclusions.

COMMON TEMPLATE →	VOLUNTARY REPORT →	STATE REQUEST →	TECHNICAL REVIEW →	REMEDIATION PLAN →	PUBLIC OUTCOMES

SCOPE + LEGAL SAFEGUARDS

• NO compulsory inspections	• NO liability determination
• NO weapon-design disclosure	• NO claim that every test crossed a border
• NO claim that every site is uniformly dangerous	• NO conflation with accidents or routine civilian operations

RADIATION MUST NOT INHERIT THE SECRECY THAT CREATED IT.
Japan asks this committee to establish a common method for documenting inherited contamination, warning affected States and measuring whether remediation actually succeeds.

Submission doctrine: voluntary • consent-based • source-neutral • evidence-led • community-informed

EVIDENCE LEDGER

SOURCES + PRECISION DECLARATIONS

Every load-bearing factual claim is traceable to an official or high-quality record

[1]	United Nations General Assembly — Resolution 79/60 Official recognition that nuclear-use and testing consequences have transcended national borders; victim-assistance and environmental-remediation mandate.	https://documents.un.org/doc/undoc/gen/n24/391/05/pdf/n2439105.pdf
[2]	US Government Accountability Office — GAO-24-104082 Official US record for 67 Marshall Islands tests and continuing nuclear-waste management questions.	https://www.gao.gov/assets/gao-24-104082.pdf
[3]	Hiroshima Peace Memorial Museum — Lucky Dragon exhibit Official Japanese museum record: vessel well outside the danger area; all 23 crew members exposed.	https://hpmmuseum.jp/virtual/VirtualMuseum_e/exhibit_e/exh0307_e/exh03078_e.html
[4]	International Atomic Energy Agency — Publication 1063 Radiological conditions at the Kazakhstan test site; 456 tests, 116 above ground and site characteristics.	https://www-pub.iaea.org/MTCD/Publications/PDF/Pub1063_web.pdf
[5]	IAEA International Nuclear Information System Population-dose reconstruction and record of fallout plumes extending beyond the Kazakhstan test-site boundary.	https://inis.iaea.org/records/ejdbm-x3087
[6]	US Government Accountability Office — GAO-26-107820 DOE sites contaminated by weapons production and nuclear-energy research; remaining cleanup estimated above half a trillion dollars.	https://www.gao.gov/products/gao-26-107820
[7]	Comprehensive Nuclear-Test-Ban Treaty Organization Soviet nuclear-testing history and the International Monitoring System's test-detection role.	https://www.ctbto.org/nuclear-testing/the-effects-of-nuclear-testing/the-soviet-unions-nuclear-testing-programme/

PRECISION DECLARATIONS

- The half-trillion-dollar figure is DOE's estimate reported by GAO for remaining Environmental Management cleanup; it is not attributed exclusively to current warheads.
- 'Beyond the test-site boundary' is not presented as proof that every Kazakhstan plume crossed an international border.
- Lucky Dragon is evidence that fallout exceeded the declared danger area—not a claim about every nuclear test.
- All technical participation, information release and site access remain subject to existing mandates, host-State consent and legitimate security protections.
- The mechanism distinguishes testing and weapons-production legacies from reactor accidents, routine safeguarded civilian operations and current regulated releases.

THE STANDARD JAPAN ASKS THE COMMITTEE TO ADOPT:
Disclose the record. Share the warning. Measure the cleanup.